



File No.: EXP202211911

RESOLUTION No.: R/00278/2023

Considering the claim filed on September 25, 2022, before this Agency by A.A.A. (hereinafter the claiming party), against the CONSELLERÍA DE POLÍTICA SOCIAL Y JUVENTUD GALLEGA (hereinafter the responding party), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The claiming party exercised their right of access against the responding party, and their request, as stated by the claiming party, did not receive the legally established response.

The claimant states that on January 19, 2022, they submitted a document to the responding party requesting a copy of the reports and minutes prepared in the school absenteeism file of their minor child, including the documents prepared by the Technical Teams for Minors.

The claiming party provides various documentation related to the claim made before this Agency and regarding the exercise of the right exercised.

On March 17, 2022, the responding party replied to the claimant stating that the preparation of reports or minutes was not necessary, as the situation had been redirected following the guidelines provided by the technicians based on the established protocol.

The claiming party states that despite following the protocols set by the Technical Team for Minors, they were summoned by the prosecutor's office.

On April 1, 2022, the claiming party submitted a new document to the responding party in which they requested:

"1 Copy of the reports, minutes, and actions prepared following the meeting held on November 29 with B.B.B., Coordinator of the School Absenteeism Program. (...) concerning the Juvenile Prosecutor's Office. And elevated to the Juvenile Prosecutor's Office.

2 To know what procedures and tools allowed B.B.B. to prepare the report verifying the authenticity of the events that occurred at the CPI and reported by the family. If such reports or minutes exist, we request a copy.

3 Copy of the reports, minutes, and actions prepared following the meeting held on November 29 with B.B.B., Coordinator of the School Absenteeism Program. (...) concerning the school center CPI

***CENTRO.1.

4 Copy of any personal information held in your possession related to this procedure, which records information about both the minor and the parents, from the school or family environment, regardless of the format in which such information is stored."

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According to the claimant, this request has not been answered.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission for processing of the claims submitted to the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors of the data, for the purposes set out in Article 37 of the aforementioned regulation, or to them when they have not been designated, the claim was forwarded to the entity being claimed against so that it could analyze it and respond to the claimant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on December 25, 2022, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the claim for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have commenced by virtue of said admission

agreement, will be six months.

The aforementioned agreement granted the entity being claimed against a hearing procedure, so that within ten working days it could present the arguments it deemed appropriate. This entity summarized the following arguments:

The entity being claimed against states that it has attended to the right of access and refers to the documentation sent to the claimant before the admission for processing.

FOURTH: After examining the arguments presented by the entity being claimed against, they are subject to transfer to the claimant, so that, within fifteen working days, they can formulate any arguments they consider appropriate. The claimant continues to believe that the right has not been attended to. They mention the reports requested and that have not been provided to them.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling claims submitted by a data subject and investigating the reasons for them.

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the claim that gives rise to this procedure, the claim was forwarded to the responsible entity for analysis, requiring it to respond to this Agency within one month and to prove that it has provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the initiation of the current procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the current procedure duly restores the guarantees and rights of the claimant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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It is also taken into account what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

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In the case analyzed here, the claimant exercised their right to access personal data and reports concerning their minor child.

The responding party claims to have addressed the right but refers to the documentation provided before the admission of this claim, submitting a copy of a letter sent to the claimant dated December 13, 2022, documentation that was clearly insufficient and the reason why the right was not considered addressed.

This Agency has analyzed the documentation provided by both parties, concluding that, while personal data has been provided as part of the right of access, the rest of what was requested by the claimant is not mentioned.

Regardless of whether the responding party has what the claimant requested regarding their child or the intention/obligation to provide it, they must refer to it, specifying the circumstances to address the request or deny it with justification, and do so in a detailed and not generic manner, indicating to the claimant the reason why they are not providing the entirety of what was requested in the claim.

The responding party, in their allegations, discusses the relationship with the claimant justifying their actions regarding the issues that arose between the parties (the events that occurred due to a minor's school absence), but does not substantiate or justify the non-delivery of the reports requested by the claimant, which could contain personal data of the interested parties. And all this without prejudice to the fact that the right of access does not include copies of documents but access to personal data, understood as any information relating to an identified or identifiable natural person.

In the case analyzed here, with the documentation present in the procedure, as can be inferred from the allegations made and the documentation provided by the responding party in the process of transferring the claim, it is verified that the access granted by the responding entity is incomplete.

In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the claim made by A.A.A. and to instruct the DEPARTMENT OF SOCIAL POLICY AND YOUTH with NIF S1511001H, to, within ten working days following the notification of this resolution, send to the claimant a certification that addresses the requested right of access or denies it with justification indicating the reasons why the request cannot be fulfilled, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to the DEPARTMENT OF SOCIAL POLICY AND YOUTH.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1037-140323

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